

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
JAHMEL PHILLIPS, TIO LEGORE AND
BREEANAH SIMS,

Plaintiff(s),

SUMMONS

1ST Plaintiff resides at:
893 New York Avenue
Brooklyn, New York 11203

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KEVIN McCARTHY
TAX REGISTRY #949290 OF THE 70TH PRECINCT,

Defendant(s),
-----X

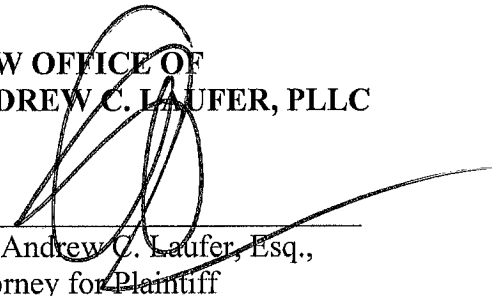
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
May 23, 2017

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER KEVIN MCCARTHY, TAX REGISTRY #949290
OF THE 70TH PRECINCT
154 Lawrence Avenue
Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
JAHMEL PHILLIPS, TIO LEGORE AND
BREEANAH SIMS,

VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER KEVIN MCCARTHY
TAX REGISTRY #949290 OF THE 70TH PRECINCT,

Defendant(s),
-----X

Plaintiffs, by and through their attorneys, Law Office of Andrew C. Laufer, PLLC
complaining of the defendants herein, upon information and belief, respectfully show to this
Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned the plaintiffs were residents of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned the defendants, POLICE OFFICER KEVIN MCCARTHY, TAX REGISTRY #949290 OF THE 70TH PRECINCT, was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That prior to the institution of this action, a notice of claim was duly served upon and filed with the city on behalf of plaintiff.
6. That on or about May 11, 2017 a hearing was held by the City pursuant to municipal law 50H.
7. That at all time herein mentioned the defendant officer was acting within the scope and course of her employment with the New York Police Department, and under color of state law.
8. That at all times herein mentioned, all of the actions of the officer alleged herein was done within the scope and course of her employment with the New York Police Department, and under color of the state law.
9. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST
AND IMPRISONMENT

10. Plaintiffs repeat and reallege each and every allegation contained above as though set forth at length herein.
11. That on or about July 26, 2016, at approximately 11:30 p.m. on or about Beverly Road and Flatbush Avenue, Brooklyn, New York, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to POLICE OFFICER KEVIN McCARTHY, TAX REGISTRY #949290 OF THE 70TH PRECINCT, wrongfully and falsely arrested, imprisoned and detained Plaintiffs without any right or justifiable grounds therefore.

12. That on or about July 26, 2016, at approximately 11:30 p.m., Defendant POLICE OFFICER KEVIN McCARTHY, TAX REGISTRY #949290 OF THE 70TH PRECINCT, jointly and severally in his capacity as a police officer, wrongfully stopped, handcuffed, and seized the Plaintiffs about their person, causing them physical pain and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiffs, nor did Plaintiffs consent to this illegal touching nor was or privileged by law.

13. That on or about July 26, 2016, Defendant McCarthy, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested Plaintiffs, restrained them and their liberty and then took them into custody.

14. That the aforesaid arrest, detention and imprisonment continued at the 70th Precinct and elsewhere.

15. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officer, without a warrant and without any reasonable cause or belief that Plaintiffs were in fact guilty of any crime.

16. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiffs; that Plaintiffs were conscious of the confinement; that Plaintiffs did not consent to the confinement; and that the confinement was not otherwise privileged.

17. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiffs without probable cause, Defendant McCarthy deprived Plaintiffs of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

18. As a result of the aforementioned actions, Defendant McCarthy deprived Plaintiffs of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

19. As a result of the aforementioned actions, Defendants deprived Plaintiffs of their right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

20. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiffs' rights.

21. That by reason of the false arrest, imprisonment and detention of Plaintiffs, Plaintiffs were subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in their credit and circumstances and was prevented and hindered from performing and transacting their necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

22. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under the laws of New York State.

SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE MALICIOUS
PROSECUTION OF PLAINTIFF

23. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

24. Upon information and belief, on or about July 26, 2016 and from that time until the dismissal of charges, which was favorable termination for the accused, Defendants deliberately and maliciously prosecuted Plaintiffs, innocent men and women without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the

City of New York, Kings County, for the purpose of falsely accusing the Plaintiffs of violations of the criminal laws of the State of New York.

25. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the Defendants.

26. As a result of the aforementioned actions, including the initiation of the criminal prosecution of Plaintiffs without probable cause, Defendants deprived Plaintiffs of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

27. As a result of the aforementioned actions, Defendants deprived Plaintiffs of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

28. As a result of the aforementioned actions, Defendants deprived Plaintiffs of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

29. The aforementioned conduct by Defendants was motivated and instigated by other than lawful reasons and without probable cause.

30. The aforementioned acts of Defendants were intentional, willful and malicious and performed with reckless disregard for and deliberate indifference to Plaintiffs' rights.

31. Plaintiffs have suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

32. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 AND RESPONDEAT SUPERIOR

33. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

34. All of the acts and omissions by the individual Defendant McCarthy, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

35. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

36. Defendant McCarthy arrested, incarcerated, and prosecuted Plaintiffs in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiffs' liberty, well-being, safety and constitutional rights.

37. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

38. On or about July 26, 2016, Defendants did stop, seize, search, and grab the persons of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiffs during the arrest process in an unlawful and excessive manner.

39. The Plaintiffs were falsely arrested, unlawfully imprisoned, and maliciously prosecuted without the Defendants' possessing probable cause to do so.

40. The above actions of Defendants resulted in the Plaintiffs being deprived of the following rights under the United States Constitution.

- a. Freedom from illegal search and seizure.
- b. Freedom from false arrest.
- c. Freedom from malicious prosecution.
- d. Freedom from unlawful imprisonment.

41. The Defendants subjected Plaintiffs to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

42. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where individuals, especially as here, have not committed a crime and have not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

43. The direct and proximate results of the Defendants' acts are that Plaintiffs suffered severe and permanent injuries of a physical and psychological nature. They were forced to endure pain and suffering to their detriment.

FOURTH CAUSE OF ACTION UNDER NEW YORK STATE LAW

51. Plaintiff repeats and realleges each and every allegation contained in the First, Second, and Third Causes of Action as if fully set forth at length herein.

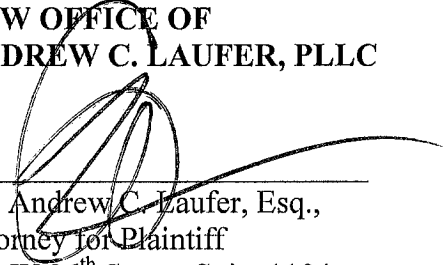
52. That the aforesaid actions, and resulting injuries to plaintiff, were due to the negligence of the City in the hiring, retention, and training of its employees, including the police officers involved in the arrest, and malicious prosecution of the plaintiffs.

WHEREFORE, plaintiffs demand judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the

jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiffs further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
May 23, 2017

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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JAHMEL PHILLIPS, TIO LEGORE AND
BREEANAH SIMS,

VERIFICATION

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KEVIN McCARTHY
TAX REGISTRY #949290 OF THE 70TH PRECINCT,

Defendant(s),

-----X

ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiffs, JAHMEL PHILLIPS, TIO LEGORE, AND BREEANAH SIMS, in the within action.

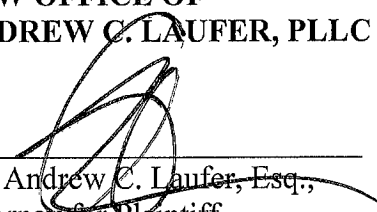
That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.

2. That the sources of my information and knowledge are records and investigation reports maintained within the file.

3. That the reason this verification is made by the affirmant and not by the plaintiffs is that the plaintiffs do not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
May 23, 2017

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index:

Year:

JAHMEL PHILLIPS, TIO LEGORE AND
BREEANAH SIMS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KEVIN McCARTHY
TAX REGISTRY #949290 OF THE 70th PRECINCT

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated: _____

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on _____ at _____ M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer